



File No.: EXP202312400

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by GEO ALTERNATIVA, S.L. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated December 20, 2024, and based on the following

FACTS

FIRST: On December 20, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202312400, by virtue of which a fine of €20,000 (twenty thousand euros) was imposed on GEO ALTERNATIVA, S.L. with NIF B87382644, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

This resolution, which was notified to the appellant on December 26, 2024, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00492/2023, the following were recorded:

FIRST. On July 22, 2023, a written submission from the claimant was received by the AEPD in which it stated that the respondent had demanded payment of a debt related to the non-payment of an invoice for gas supply for July 2021, including their data in delinquent files, despite having reached an agreement before the Consumer Section of the Territorial Service of Industry, Commerce, and Economy of the Junta de Castilla y León.

SECOND. A document from ASNEF/EQUIFAX dated May 30, 2023, was submitted, indicating that "We inform you that on May 29, 2023, the entity Geo Alternativa requested the registration in the ASNEF file of the following personal data related to the non-payment of the contract it maintains with said entity:

PRODUCT

UNPAID AMOUNT QUALITY

ELECTRICITY GAS

(...)

HOLDER

(...)"

THIRD. A Natural Gas Supply Contract, Electricity, and Gas Installation Maintenance No. (...), signed by the claimant and the marketer Cepsa Comercial Petróleo SAU on June 5, 2019, was submitted.

FOURTH. An email dated January 7, 2021, from CEPSA (the company with which the electricity supply contract was maintained) was submitted to the claimant informing them of the agreement reached with the respondent:

"(...)

We are contacting you to inform you that Cepsa Comercial Petróleo, S.A.U. ("Cepsa") will soon cease to provide its Cepsa Home and Cepsa Light and Gas Business services.

For this reason, Cepsa has reached an agreement with the marketing company GEO Alternativa, S.L., which operates under the commercial brand "PODO" (www.mipodo.com) for the transfer of customers who have contracted electricity, natural gas, and associated maintenance services with us.

This transfer will entail the consequent contractual subrogation in your electricity and/or natural gas supply contract (and provision of associated maintenance services) in favor of PODO.

In this regard, the subrogation by PODO guarantees the maintenance of the current General and Particular Conditions ("CGyP") of your contract until the end of the current annual period at the time of the effective transfer of the contract and, in any case, for a minimum period of six months from the date of the effective transfer of the contract.

With PODO, the following conditions will be maintained without you having to do anything:

Prices and discounts of your contracted rates.

Promotional discounts on fuel (in the form of discount points "Because YOU Return") at Cepsa Service Stations (valid for Cepsa Home customers).

A 12-month service for emergencies and repairs of appliances and the electrical installation of your home included in the price you currently have.

And of course, the change will be made without any interruption of supply and at no additional cost to you.

(...)"

FIFTH. Despite what was stated in the previous email, the respondent sent the claimant an email dated March 3, 2021, stating the following:

"(...)

Cepsa assured you that when you switched to Podo, your Price and Product conditions would remain until the end of your contract's validity, but we want to give you an even more special welcome.

At Podo, you will continue with the same conditions you had for Price and Product until January 31, 2022.

We want the change to be as simple as possible for you, and what is simpler than everything staying the same? Not the same, BETTER!

Podo offers you 12 MONTHS free of an emergency maintenance service for electrical failures and appliances. Valued at €68.

(...)"

In that same communication, on the last page and at the end of it, the following appears:

"(...)

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/23

On the other hand, we inform you that the discounts applied to the price of gas up to now will cease to be in effect starting from the next invoice. You have 15 days to resolve the contract if you do not agree with this change. If we do not receive notification from you within that time period, we will consider these new conditions accepted.

SIXTH. There are cross emails between the claimant and the respondent dated 06/07/2021, 07/07/2021, and 08/07/2021 in which the claimant expresses their disagreement with the unilateral modification of the conditions agreed upon in the original contract.

SEVENTH. There is a document submitted by the claimant dated 01/10/2021 addressed to the Consumer Section, Territorial Service of Salamanca, of the Junta de Castilla y León, in which the following is requested:

1) The payment by GEO ALTERNATIVA, S.L. (PODO) of the amount of the invoice (...), of (...) euros, plus the legal interest increased by two points applied to that amount, accrued and accruing from August 15, 2021, until the date of full payment.

2) Declare the unilateral modification of the price applied in invoice (...), inappropriate for the reasons expressed in the body of the document, obliging GEO ALTERNATIVA, S.L. to apply the agreed discount of 12% on the fixed fee and reduce the amount of said invoice to the sum of (...) euros.

3) Impose on GEO ALTERNATIVA, S.L. any economic sanctions that may arise from the aforementioned contractual breach.

In light of the allegations submitted, the aforementioned body issued a resolution dated 17/02/22, in which it was agreed to archive the complaint due to having reached an agreement between the parties.

EIGHTH. There are debt demands submitted to the claimant by the respondent dated 27/09/2021, 21/01/2022 (pending litigation before Consumer), and 30/08/2022, and the company Collecta Servicios de Gestión de Cobros, S.L. dated 31/03/2022, 17/08/2022, and 28/12/2022 requesting payment of invoice nº (...) for an amount of (...) euros.

NINTH. Gas invoices are submitted:

- No. (...), consumption period 01/06/2021 to 30/06/2021 and issued by the respondent on 03/07/2021 for an amount of (...) euros
- No. (...), consumption period 01/07/2021 to 31/07/2021 and issued by the respondent on 02/08/2021 for an amount of (...) euros.
- No. (...), consumption period 25/02/2021 to 10/08/2021 and issued by the respondent on 13/08/2021 for an amount of -(...) euros,

TENTH. An email dated 05/09/2021 is submitted, sent by the respondent to the claimant, stating the following:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

4/23

“(…)

We inform you that, after making the necessary checks, the credit that is in your favor, is already generating (...) dated 13/08/2021 and an amount of: -(...) euros, the reason why it does not reach your bank is because invoice (...) dated 02/08/2021 and an amount of: (...) euros, is unpaid or partially unpaid; until the total debt is generated, we cannot send the credit to your bank.

(…)”

ELEVENTH. A transfer receipt issued by the financial entity ING, dated 03/09/2021, is submitted, with the claimant as the sender and the respondent as the beneficiary, the recipient entity being Banco Santander, destination account ES00 0000 0000 0000 0000 0000, for an amount of (...) euros, with additional information including (...) Invoice (...) (the claimant's mobile number and the invoice number).

Additionally, a transfer receipt issued by the financial entity ING, dated 03/11/2023, is submitted, with the claimant as the sender and the respondent as the beneficiary, the recipient entity being Banco Santander, destination account ES00 0000 0000 0000 0000 0000, for an amount of (...) euros, with additional information including the claimant's ID number.

THIRD: The appellant submitted on 27/12/2025, to this Spanish Agency for Data Protection, a request for reconsideration, basing it fundamentally on allegations already presented throughout the procedure and, additionally, on a prior one regarding their disagreement with the resolution adopted, insisting that it did not take into account the recent Judgment of the Supreme Court dated 27/02/2024; that the debt is proven and the legitimacy for the processing of the data, requesting the archiving of the proceedings and/or the suspension of the sanction.

Competence

The Presidency of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that all of them were already analyzed and dismissed in the Legal Foundations II to VI of the contested Resolution, as transcribed below:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/23

Allegations to the Resolution Proposal

Firstly, the responding party presents a series of considerations regarding the debt as a preliminary allegation: that it was due; that the client was aware of maintaining a debt with the responding party; that the debt originates from the return of an invoice; that the claiming party proceeded to pay the full amount of the due invoice in the year 2023; that the responding party removed the claiming party from the solvency file prior to the latter having paid the debt; that there has been no financial harm; and finally expresses its disagreement with the sanction since it insists that the inclusion in the file was correct given that the claiming party was a debtor, even though the amount of that debt was not correctly reflected.

It is true that the claiming party maintained a debt with the responding party, although not for the amount that had been entered into the file and claimed by the latter, as it should not be forgotten that the user had made a transfer for the amount of (...) euros; the National Court has stated in numerous rulings that anyone who uses such an extraordinary means of collection, as is the annotation of the debt in a delinquent register, must ensure compliance with all requirements that allow the use of this accessory means to achieve the collection of the debt.

It is evident that the responding party did not observe the formal and material requirements established in accordance with the regulations on the protection of personal data.

Therefore, it is required that the data be accurate and truthful, infringing the requirement of certainty at the moment erroneous data is provided to a file that provides information to third parties about the non-fulfillment of monetary obligations.

Regarding the reference to the Supreme Court ruling of 27/02/2024 (Judgment No. 280/2024), it is noted that the arguments presented therein cannot be extrapolated to this case, as the cited ruling refers to how the mere fact of inclusion in a solvency file of a non-delinquent person affects their right to honor regulated by Organic Law 1/1982, of May 5, on civil protection of the right to honor, personal and family privacy, and one's own image. Conversely, in the present case, within the scope of this Agency's competencies, it seeks to determine whether the actions of the responding party were in accordance with the regulations on the protection of personal data. The Supreme Court in its ruling STS 398/2024, March 19, 2024, among others, establishes a clear distinction between the right to honor and the right to the protection of personal data.

- Regarding the absence of financial harm caused to the claimant, such a statement cannot be accepted; the claimant had to proceed to deposit not only the amount that was intended to be appropriated but also on 03/11/2023 proceeded to transfer for the second time the amount of the invoice to avoid further intimidating demands and inclusion in the file, as evidenced in the proven fact eleventh with the transfer receipt issued by the financial entity ING, Ordering party, the claimant and Beneficiary, the responding party, recipient entity Banco Santander, destination account ES00 0000 0000 0000 0000, for an amount of (...) euros.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
6/23

- Regarding your disagreement with the amount of the sanction and its relation to the principle of proportionality, the National Court has stated in numerous rulings that this principle cannot be exempt from judicial review, as the margin of appreciation granted to the Administration in imposing sanctions within the legally established limits must be developed by weighing, in any case, the concurrent circumstances, in order to achieve the necessary and due proportion between the alleged facts and the responsibility required, given that every sanction must be determined in accordance with the severity of the infringement committed and according to a criterion of proportionality in relation to the circumstances of the act. Thus, proportionality constitutes a normative principle that is imposed on the

Administration and that reduces the scope of its sanctioning powers.

Therefore, in accordance with the circumstances present in this case, it is considered that the principle of proportionality is not violated in the determination of the imposed sanction, resulting in it being weighed and proportionate to the severity of the infringement committed, the importance of the facts, as well as the circumstances taken into account to grade the sanction, without any reasons being appreciated that justify its reduction, especially considering the amount to which such sanctions can rise in accordance with Article 83.5 of the RGDP, which provides for the infringement of Article 6.1 of the RGDP, "with administrative fines of up to €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

- The responding party alleges that the error committed was due to the user paying the amount they deemed correct and not the full invoice, entering an amount that the system did not detect or link as payment, as it did not correspond to any amount owed.

However, such a statement cannot be accepted either; it is sufficient to point out, as stated in the proven facts tenth and eleventh, the email dated 5/09/2021, sent to the claiming party, which proves and evidences that they were aware that part of the payment had been made:

"(...)

We inform you that, after carrying out the appropriate checks, the credit that is in your favor is already generating (...) dated 13/08/2021 and an amount of: - (...) euros, the reason why it does not reach your bank is because the invoice (...) dated 02/08/2021 and an amount of: (...) euros, is unpaid or partially unpaid until the total debt is generated we cannot send the credit to your bank.

"(...)"

As well as the deposit that had been made as evidenced by the Transfer receipt issued by ING, dated 03/09/2021, with the ordering party being the claimant; the beneficiary being the responding entity; and the recipient entity being Banco Santander; with destination account ES00 0000 0000 0000 0000 0000, C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/23

for an amount of (...) euros. In the same figure as additional information (...)

Invoice (...) (the claimant's mobile number and the invoice number).

- The responding party alleges that notification was made requiring payment of the debt on numerous occasions, a debt that was acknowledged by the claimant regardless of whether it was the exact amount.

The inclusion in a solvency file that processes personal data related to the compliance or non-compliance with monetary obligations provided by a creditor or by someone acting on their behalf or interest must be carried out in accordance with the provisions of Article 20.1 of the LOPDGDD, which establishes the need to meet a series of requirements for these purposes:

a) That the data has been provided by the creditor or by someone acting on their behalf or interest.

b) That the data refers to certain, due, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through an alternative binding dispute resolution procedure between the parties.

c) That the creditor has informed the affected party in the contract or at the time of requiring payment about the possibility of inclusion in such systems, indicating those in which they participate.

Therefore, the prior requirement for payment is a prerequisite for any inclusion of data in the file, being necessary to point out that it is indeed debatable and questionable whether prior payment requests were made when the debt was subject to administrative claim and the decision-making body had not issued a resolution on the matter. Thus, it is stated in the eighth proven fact that the responding party sent communications to the claimant urging payment of invoice no. (...), for an amount of (...) euros in a letter dated 01/21/2022, when they were already aware of the deposit of the amount that the claimant considered acceptable.

- Furthermore, it should be noted that the LOPDGDD in its Additional Provision Six, Incorporation of

Debts into Credit Information Systems, establishes that:

“Debts in which the amount of the principal is less than fifty euros shall not be included in the credit information systems referred to in Article 20.1 of this organic law. The Government may update this amount by royal decree.”

Finally, the responding party claims that it does not consider Article 6.1 of the GDPR to be infringed, since the data was processed as the claimant was a customer of theirs; in addition to being necessary for the execution of a contract and considering that a legitimate purpose was pursued and the “fulfillment of an obligation by the data controller.”

In this regard, and without prejudice to the section of this resolution specifically dedicated to this point, it is only appropriate to emphasize that Article 20 of the LOPDGDD specifically establishes the necessary requirements to consider or presume lawful from the perspective of data protection the inclusion of data in credit information systems, whose basis of legitimacy is generally supported by the existence of a legitimate interest of the data controller. As indicated in the explanatory memorandum of the LOPDGDD, by virtue of this article, a “iuris tantum” presumption of the prevalence of the legitimate interest of the controller is established when carried out with a series of requirements.

Likewise, in the case of solvency files, the Supreme Court considers that “for the inclusion of the debtor's data in a delinquent register to be considered legitimate,” it is necessary that the data in these records be accurate and truthful, as well as relevant. To be considered relevant, there must not have been any questioning by the debtor, whether through administrative, judicial, or arbitral means, regarding the amount or existence of the debt.

Considering the circumstances of this case, as outlined throughout the resolution, it cannot be concluded that the processing carried out by the responding party had a basis of legitimacy for it in the terms provided by Article 6.1 of the GDPR in relation to the aforementioned Article 20 of the LOPDGDD.

For all these reasons, the allegations made by the responding party cannot be accepted.

III

Unfulfilled obligation: infringement of Article 6.1 of the GDPR

The reported facts materialize in the inclusion of the claimant's personal data in the ASNEF file in relation to a debt that lacked the requirement of certainty, which could violate the regulations on personal data protection.

Article 58 of the GDPR, Powers, states:

“2. Each supervisory authority shall have all of the following corrective powers:

(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(...)”

Article 5 of the GDPR, Principles relating to processing, establishes that:

“1. Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject (‘lawfulness, fairness, and transparency’);

(...)”

9/23

And Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful:

“1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation to which the controller is subject;

d) the processing is necessary to protect the vital interests of the data subject or of another natural person.

e) the processing is necessary for the performance of a task carried out in the public interest or in the

exercise of official authority vested in the controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

Furthermore, Recital 40 of the aforementioned GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or under other Union or Member State law to which this Regulation relates, including the necessity of compliance with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is a party or for the purposes of taking steps at the request of the data subject prior to entering into a contract.”

On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:

“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

“2) ‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/23

automated or not, such as collection, recording, organization, structuring, preservation, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, suppression or destruction;

And Article 20 of the LOPDGD, Credit Information Systems, establishes that:

“1. Unless proven otherwise, the processing of personal data related to the non-fulfillment of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:

a) That the data has been provided by the creditor or by someone acting on their behalf or interest.

b) That the data refers to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.

c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate.

The entity maintaining the credit information system with data related to the non-fulfillment of monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data remaining blocked during that period.

d) That the data is only maintained in the system while the non-fulfillment persists, with a maximum limit of five years from the due date of the monetary, financial, or credit obligation.

e) That the data related to a specific debtor can only be consulted when the person consulting the system has a contractual relationship with the affected party that involves the payment of a monetary amount or has requested the conclusion of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in the legislation on consumer credit contracts and real estate credit contracts.

When the right to limit the processing of data has been exercised before the system by contesting its accuracy in accordance with the provisions of Article 18.1.a) of Regulation (EU) 2016/679, the system

will inform those who may consult it according to the previous paragraph about the mere existence of such circumstance, without providing the specific data regarding which the right has been exercised, while the request of the affected party is being resolved.

f) That, in the event that the request for the conclusion of the contract is denied, or it does not come to fruition as a result of the consultation made, the person who consulted the system must inform the affected party of the result of that consultation.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/23

2. The entities that maintain the system and the creditors, regarding the treatment of the data related to their debtors, will have the status of joint controllers of the data processing, applying the provisions established by Article 26 of Regulation (EU) 2016/679. It will be the responsibility of the creditor to ensure that the requirements for inclusion in the debt system are met, being liable for their non-existence or inaccuracy.

3. The presumption referred to in paragraph 1 of this article does not cover cases where the credit information is associated by the entity maintaining the system with additional information not contemplated in that paragraph, related to the debtor and obtained from other sources, in order to carry out profiling of the debtor, particularly through the application of credit scoring techniques. The processing of personal data requires the existence of a legal basis that legitimizes it.

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, in particular, when it is necessary for the execution of a contract in which the affected party is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not prevail over the interests or the fundamental rights and freedoms of the affected party requiring the protection of such data. Processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the affected party or of another natural person, or for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the data controller.

The claimed facts arise as a consequence of the subrogation by the claimed party in the rights of CEPSA and the elimination of the discounts on invoices that had been applied to the clientele; the claimant was informed of this subrogation on 07/01/2021, and in the same communication, it was indicated that the maintenance of the General and Particular Conditions of the contract was guaranteed "until the end date of the current annual period at the time of the effective assignment of the contract and, in any case, for a minimum period of six months from the date on which the effective assignment of the contract occurs," including "Prices and discounts of your contracted rates." The billing period of the claimed party as a consequence or derived from the aforementioned subrogation contract began on 25/02/2021.

However, despite the previous communication, on 03/03/2021, the claiming party received a new email from the claimed party indicating, among other things, that: "Cepsa assured you that your price and condition would be maintained."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/23

products until the end of the validity of your contract, but we want to give you an even more special welcome.

At Podo, you will continue with the same conditions you had regarding Price and Product until January 31, 2022."

In that same communication, separated from the rest, in a more subtle manner and attempting to conceal it, it is informed that:

“(…)

On the other hand, we inform you that the discounts applied to the price of gas up to this point will cease to be valid starting from the next invoice. You have 15 days to terminate the contract if you do not agree with this change. If we do not receive notification from you within that time period, we will consider these new conditions accepted.”

There is no record of notification from the claimant in the sense expressed in that paragraph, and the claimant herself acknowledges in her complaint that “this paragraph goes completely unnoticed, as it is not highlighted.”

The invoice received by the claimant No. (...), for the consumption period from 01/06/2021 to 30/06/2021, issued by the defendant on 03/07/2021 and sent for collection, shows an amount of (...) euros, which is the amount that the claimant had been assuming, as it included the agreed discounts and bonuses.

However, in August, she receives invoice No. (...), for the consumption period from 01/07/2021 to 31/07/2021 for an amount of (...) euros, no longer including the discounts that had been previously applied. The affected party expressed her disagreement with the amount stated in the invoice, considering that the discounts should extend at least until the date mentioned in the July communication, and that the amount should match what had been billed previously.

And that amount, (...) euros, was paid by the claimant to the account corresponding to the amount claimed, as evidenced by the transfer receipt made at ING on 03/09/2021, ordered by the claimant and directed to the account owned by the defendant, rounded as the claimant clearly states to (...) euros. However, the total amount of the invoice was demanded by the defendant without taking into account the payment made by the claimant, so the debt that was included in the solvency file lacked the requirement of certainty, violating the conditions set forth in Article 20.1. b) of the LOPDGDD, which establishes that b) The data refers to certain, overdue, and enforceable debts, whose existence or amount has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.

Furthermore, there is an email dated 05/09/2021 sent to the claimant indicating:

“(…)

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
13/23

We inform you that, after conducting the appropriate checks, the credit that is in your favor is already generating (...) dated 13/08/2021 and an amount of: -(...) euros. The reason why it has not reached your bank is that the invoice (...) dated 02/08/2021 and an amount of: (...) euros, is unpaid or partially unpaid. Until the total debt is generated, we cannot send the credit to your bank.

(…)

That is to say, the party being claimed acknowledged that part of the invoice had been paid by the party being claimed and was partially unpaid in the amount of the discounts and bonuses that had been applied to the invoice.

It should not be forgotten that the claiming party filed a complaint with the Consumer Section, Territorial Service of Salamanca, of the Junta de Castilla y León, in which it was requested:

- 1) The payment by GEO ALTERNATIVA, S.L. (PODO) of the amount of the invoice (...), of (...) euros, plus the legal interest increased by two points applied to that amount, accrued and to be accrued from August 15, 2021, until the date of its full payment.
- 2) Declare the unilateral modification of the price applied in the invoice (...) as inappropriate, for the reasons expressed in the body of the document, obliging GEO ALTERNATIVA, S.L. to apply the agreed discount of 12% on the fixed fee and reduce the amount of that invoice to the sum of (...) euros.
- 3) Impose on GEO ALTERNATIVA, S.L. any economic sanctions that may arise from the aforementioned contractual breach.

And as stated in the proven facts, in light of the allegations made, a Resolution was issued on 17/02/22 in which it was agreed to archive the complaint due to having reached an agreement between the parties.

However, from the request made by the claiming party in the aforementioned complaint, it is noted that the first point has been addressed, as evidenced by the payment made by the party being claimed for invoice (...), in the amount of (...) euros, for the period 25/02/2021 to 10/08/2021, confirmed by the claiming party in their document dated 23/07/2023, stating that they received a call from Consumer stating that they were going to pay that invoice (This amount, as stated in the invoice, came from the difference between actual consumption and contracted consumption and was owed by the company); nothing is mentioned about the rest, and the same claimant in the aforementioned document adds "but no mention whatsoever of the supposedly unpaid invoice."

Both before and after the date of the Consumer Resolution, and even while pending resolution, the company sent numerous communications demanding payment of the amount of invoice nº (...), for the amount of (...) euros: there are emails dated 27/09/2021, 21/01/2022 (while the litigation was pending before Consumer), and 30/08/2022; also, the entity Collecta Servicios de Gestión de Cobros, S.L. in writings dated 31/03/2022, 17/08/2022, and 28/12/2022 addressed the claiming party demanding payment, granting a deadline for this, and, failing that, to file a claim in monitoring proceedings for non-payment. Finally, the claiming party received a letter from ASNEF/EQUIFAX dated 30/05/2023 informing them of their registration in C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/23

the ASNEF file of their personal data as a consequence of the non-payment of invoice no. (...), for the amount of (...) euros.

The First Chamber of the Supreme Court -in its rulings SSTS 463/2019, of September 11; 174/2018, of March 23; 68/2016, of February 16; 740/2015, of December 22; and 176/2013, of March 6, among others- has established a doctrine that can be summarized as follows:

"The data included in these delinquent records must be true and accurate; however, mere compliance with these requirements is not sufficient to meet the demands of the principle of data quality in this type of registry. There are data that can be true and accurate without being pertinent, as they are not decisive for assessing the economic solvency of the parties involved.

- If the debt is subject to dispute, because the data holder legitimately believes that they do not owe what is being claimed and the matter is subject to judicial or arbitral decision, the lack of payment is not indicative of the insolvency of the affected party. The debt may ultimately be recognized, in whole or in part, by the judgment or arbitral award and therefore may be considered as a true data. However, it was not a pertinent and proportionate data for the purpose of the automated file, because its purpose is not merely to record debts, but to evaluate the asset solvency of the affected parties. Therefore, only the inclusion in these files of those debtors who cannot or do not want, without justification, to pay their debts is pertinent, but not of those who are legitimately disputing with the creditor the existence or amount of the debt.

- When it comes to files related to the fulfillment of monetary obligations, the debt must also be due and enforceable, certain, that is, unequivocal, indisputable, and it is also necessary to have made a prior payment request. For this reason, it is not permissible to include personal data in these records due to uncertain, doubtful, non-peaceful, or litigated debts.

- The inclusion in delinquent records cannot be used by large companies to seek to collect amounts they deem pertinent, relying on the fear of personal discredit of the affected party, the detriment of their professional prestige, and the denial of access to the credit system that appearing in a delinquent file entails, thus avoiding the expenses that would come with initiating the corresponding judicial procedure, often exceeding the amount of the debts they claim.

Therefore, the inclusion in the delinquent registry when the client has legitimately questioned the existence or amount of the debt, in judicial or arbitral proceedings, constitutes an illegitimate pressure.

Consequently, in light of the aforementioned doctrine, it is appropriate to respond to the question raised by the Admission Section in the following terms:

In consideration of the purpose of such records -which is not to confirm the non-payment of debts, but to evaluate the asset solvency of the debtor- for the inclusion of the debtor's data in a delinquent registry to be considered legitimate, it is not enough for the data regarding the amount of the unpaid debt to be accurate and true, but it is also necessary for the inclusion in the registry to be pertinent. And it will not be pertinent when the debtor has legitimately questioned, in administrative, judicial, or arbitral proceedings, the existence or amount of the debt."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
15/23

Therefore, the conduct of the respondent is considered to violate the principle of lawfulness enshrined in Article 6.1 of the GDPR, in relation to Article 20.1 of the LOPDGDD, classified under Article 83.5 a) of the GDPR.

IV

Classification of the infringement of Article 6.1 of the GDPR

The infringement attributed to the respondent is classified under Article 83.5 a) of the GDPR, which states that the infringement of "the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9" is subject to penalties, in accordance with paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

And in its Article 72, it considers for the purposes of prescription that: "Very serious infringements are: 1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)"

V

Sanction for infringement of Article 6.1 of the GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or

organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. According to the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The ongoing nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having a data protection officer when not mandatory.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in those cases where it is not mandatory."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/23

"assumptions in which there are controversies between them and any interested party."

- In accordance with the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in the present case for the infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR for which the respondent is held responsible, the following factors are considered concurrent:

The nature and severity of the infringement; the facts revealed affect a basic principle related to the processing of personal data, such as legitimacy, which the regulation penalizes with the utmost severity; the level of harm suffered by the claimant that affects their economic solvency due to being included in common credit information systems at the request of the respondent in relation to a debt that lacked the requirement of certainty since the claimant had paid for the consumption incurred without the discounts they had previously benefited from (Article 83.2.a) of the GDPR).

The intentionality or negligence in the infringement, as the respondent included the data in a delinquent file without the debt meeting the requirements of Article 20.1 of the LOPDGDD. Also connected with the degree of diligence that the data controller is obliged to exercise in compliance with the obligations imposed by data protection regulations, the SAN of 17/10/2007 can be cited. Although it was issued before the GDPR came into force, its ruling is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, specified that "(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the infringer does not behave with the required diligence. In assessing the

degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard" (Article 83.2.b) of the GDPR).

The activity of the infringing entity linked to the processing of personal data of both clients and third parties. In the activity of the respondent entity, the processing of personal data is essential, therefore, given its business volume, the significance of the conduct subject to this claim is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

In light of the above, it is deemed appropriate to establish a fine of 20,000 euros for the violation of Article 6.1 of the GDPR.

VI

Adoption of measures

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/23

The corrective powers attributed to the AEPD as the supervisory authority by the GDPR are outlined in Article 58.2, paragraphs a) to j).

Upon confirmation of the infringement, it may be agreed to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, which states that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

Therefore, it is deemed appropriate to order that the respondent, within six months from the finality of the resolution, adjust the processing activities subject to this procedure to the applicable regulations. This resolution establishes the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as they are the ones who fully understand their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD. Specifically, they must comply with the requirements set forth in Article 20 of the LOPDGDD regarding the legitimization of processing.

It is noted that failure to comply with the order imposed by this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

III

The appellant in their appeal document insists on referring to the Judgment of the Supreme Court dated 27/02/2024 (Judgment No. 280/2024) in which the Second Legal Ground states that "8.- On this issue, in judgment 671/2021, of October 5, we declared that 'what is truly relevant for the infringement of the honor of the plaintiffs [...] is not so much the correctness of the specific amount in which the bank quantified the debt, but that their personal data associated with economic data indicating their status as defaulters was communicated to the CIRBE, without them actually being so.'

"9.- For this reason, the incorrectness of the data regarding the amount of the debt recorded in the defaulters' file does not constitute a violation of the right to honor as it does not add a relevant devaluation regarding the protection of that fundamental right which already implies being treated, justifiably, as a defaulter."

Consequently, the mere fact that the debt communicated to the common file on patrimonial solvency was for an amount higher than that subsequently determined in the judgment does not imply that the right to honor of the plaintiff has been violated, since what would have violated their right to honor

would be being treated as a defaulter when they were not; but not the communication of a debt for an amount higher than that subsequently determined in the judgment.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
19/23

However, the appellant forgets that the aforementioned ruling belongs to the civil jurisdiction of the Supreme Court, more specifically addressing the issue of the right to honor in the context of the inclusion of data in delinquent files, a fundamental right regulated in Article 18 of the Constitution and Organic Law 1/1982, of May 5, on the civil protection of the right to honor, personal and family privacy, and one's own image; however, such an issue, as expected, is not within the competence of the AEPD, no matter how much the appellant tries to bring it to its own advantage, and it bears no similarity to the case examined; in the present case, we are faced with the violation of the fundamental right to the protection of personal data, specifically in infringement of Article 6.1 of the GDPR.

On the other hand, Article 5 of the GDPR states as one of the principles of processing that the data shall be accurate and, where necessary, kept up to date; reasonable measures shall be adopted to ensure that personal data that is inaccurate is erased or rectified without delay ("accuracy").

Also, Article 5.2 establishes that the data controller shall be responsible for compliance with the provisions of paragraph 1 and capable of demonstrating it ("proactive responsibility").

- The appellant claims that the claimant had a debt with the appellant, although not for the amount with which they were registered when they accessed the delinquent file.

Therefore, the total amount of the invoice was requested without taking into account the payment that had been made by the claimant, so the debt that was included in the solvency file lacked the requirement of certainty, violating the conditions set out in Article 20.1.b) of the LOPDGDD, which establishes that b) The data refers to certain, due, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.

The appellant refers to the fact that the payment was not known and the system had not located it; however, as noted in the contested Resolution, there is an email dated 09/05/2021 sent to the claimant indicating:

"(...)

We inform you that, after carrying out the appropriate checks, the credit that is in your favor is already generating (...) dated 08/13/2021 and an amount of: -(...) euros, the reason why it does not reach your bank is because the invoice (...) dated 08/02/2021 and an amount of: (...) euros, is unpaid or partially unpaid until the total debt is generated we cannot send the credit to your bank.

"(...)"

That is to say, the responding party acknowledged that part of the invoice had been paid by the responding party and was partially unpaid in the amount of the discounts and bonuses that had been applied to the invoice.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
20/23

The First Chamber of this Supreme Court -in its rulings STS 463/2019, of September 11; 174/2018, of March 23; 68/2016, of February 16; 740/2015, of December 22; and 176/2013, of March 6, among others- has established a doctrine that can be summarized as follows:

"The data included in these delinquent debtor registers must be true and accurate; however, mere compliance with these requirements is not sufficient to meet the demands of the principle of data quality in this type of register. There are data that can be true and accurate without being pertinent, as they are not decisive for assessing the economic solvency of the parties involved.

- If the debt is disputed because the data subject legitimately believes that they do not owe what is

being claimed and the matter is subject to judicial or arbitral decision, the failure to pay is not indicative of the affected party's insolvency. It may be that the debt is ultimately recognized, in whole or in part, by the judgment or arbitral award and therefore can be considered as a true data point. However, it was not a pertinent and proportionate data point for the purpose of the automated file, as its purpose is not merely to record debts, but to evaluate the patrimonial solvency of the affected parties. Therefore, only the inclusion in these files of those debtors who cannot or do not want, without justification, to pay their debts is pertinent, but not of those who are legitimately disputing with the creditor the existence or amount of the debt.

- When it comes to files related to the fulfillment of monetary obligations, the debt must also be due and enforceable, certain, that is, unequivocal, undoubted, and it is additionally necessary to have made a prior payment request. For this reason, it is not permissible to include personal data in these registers due to uncertain, doubtful, non-peaceful, or litigated debts.

- The inclusion in delinquent debtor registers cannot be used by large companies to seek to collect amounts they deem pertinent, relying on the fear of personal discredit of the affected party, the detriment of their professional reputation, and the denial of access to the credit system that comes with appearing in a delinquent debtor file, thus avoiding the costs that would entail initiating the corresponding judicial procedure, which often exceeds the amount of the debts they claim.

Therefore, the inclusion in the delinquent debtor register when the client has legitimately questioned the existence or amount of the debt, in judicial or arbitral proceedings, constitutes illegitimate pressure. Consequently, in light of the aforementioned doctrine, it is appropriate to respond to the question raised by the Admission Section in the following terms:

Considering the purpose of such registers -which is not to record the non-payment of debts, but to evaluate the debtor's patrimonial solvency- for the inclusion of the debtor's data in a delinquent debtor register to be considered legitimate, it is not enough for the data regarding the unpaid debt amount to be accurate and truthful; it is also necessary for the inclusion in the register to be pertinent. And it will not be pertinent when the debtor has legitimately questioned, in administrative, judicial, or arbitral proceedings, the existence or amount of the debt."

- Finally, the appellant argues that the claiming party was notified on numerous occasions warning that they could be included in a delinquent debtor file, regardless of whether the amount was accurate or not;

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
21/23

However, this cannot be accepted; as stated in the contested Resolution, both before and after the date of the Consumer Resolution, and even while pending resolution, the commercial entity sent numerous communications demanding payment of the amount of invoice no. (...), for an amount of (...) euros: emails dated 27/09/2021, 21/01/2022 (pending litigation before Consumer), and 30/08/2022; also, the entity Collecta Servicios de Gestión de Cobros, S.L. in writings dated 31/03/2022, 17/08/2022, and 28/12/2022 addressed the claiming party demanding payment, granting a deadline for this, and, otherwise, to file a claim in monitoring proceedings for non-payment. Finally, the claiming party received a letter from ASNEF/EQUIFAX dated 30/05/2023 informing them of the registration of their personal data in the ASNEF file as a result of the non-payment of invoice no. (...), for an amount of (...) euros, without taking into account the payment made by the claiming party, which concluded that the debt that was registered in the file was not accurate, as confirmed by the appellant.

And finally, regarding the debt owed, as stated in the proven facts, the claiming party paid into the account of the claimed party, as evidenced by the transfer receipt made at ING on 03/09/2021, ordered by the claimant to the account owned by the claimed party, for an amount of (...) euros.

The claimed party itself acknowledges and confirms that the amount owed was not the one that was registered in the file; in this regard, it states that "We cannot agree with this assessment because one thing is that the debt was not (...) euros, but the (...) euros difference in relation to what had been partially paid," or when it states "this party notified on countless occasions warning that they could be

included in a file of defaulters, and, regardless of whether the amount was exact or not, the user expressly acknowledges that they did not respond because they understood that having a debt lower than (...) euros, they could not be included in such a file."

Well, related to this amount, the LOPDGDD in its sixth additional provision, Incorporation of debts into credit information systems, establishes that:

"Debts in which the principal amount is less than fifty euros shall not be incorporated into the credit information systems referred to in Article 20.1 of this organic law.

The Government, by royal decree, may update this amount."

IV

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that allow for reconsideration of the validity of the contested resolution.

V

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

22/23

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, the mandatory pronouncement of this Agency regarding the present appeal has not been issued to date.

According to the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and notify it in all procedures regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Considering the cited provisions and others of general application,

The Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by GEO ALTERNATIVA, S.L. against the resolution of this Spanish Agency for Data Protection issued on 20/12/2024, in the file (...).

SECOND: TO NOTIFY this resolution to GEO ALTERNATIVA, S.L.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account no. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es